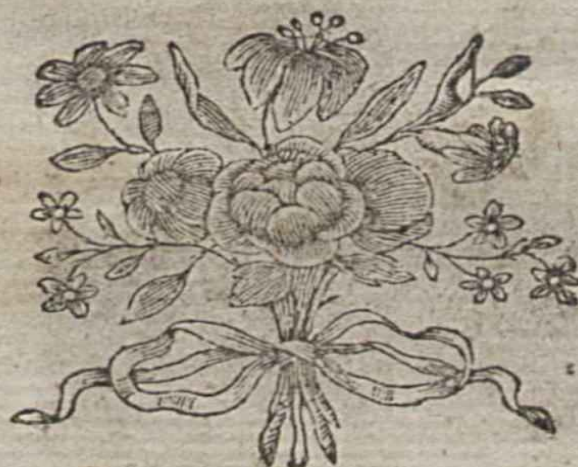


AN  
ESSAY  
ON THE  
SLAVE TRADE.



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M.DCC.LXXXVIII.

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AN  
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M.DCC.LXXXVIII.

A Pamphlet intituled a “Proposal for the Consideration of those, who interest themselves in the Abolition or Preservation of the Slave Trade, written by a Clergyman,” has given me the greatest pleasure. The anonymous author is through the whole guided by philanthropy and historical knowledge; and he has founded his proposals upon such principles as I find have been laid down by our ancestors of the middle ages, when employed in the abolition of a traffic, so highly important to them.

Human beings were of old the principal stock in trade, and the system of raising this valuable article for an extensive market had its source in that

degree of civilization, which borders upon the savage state of human nature, and prevails on the conqueror, rather to sell his prisoners to foreign buyers, than to put them to the sword, a practice common to all barbarous nations.

Various as the claims and titles were, by which our ancestors came to their slaves, I have no doubt but that the same still prevail among the Africans, and will continue to prevail till the blessings of our sacred religion, the knowledge of common duties, and a fixed love for agriculture, arts, and manufactures, spread themselves among those millions, who at present are sunk into ignorance.

Before the Christian religion was universally received in Europe, slave-markets were regularly established at Rome<sup>[1]</sup>, at Bristol<sup>[2]</sup>, at Micklenburgk<sup>[3]</sup>, at Skonor<sup>[4]</sup>, and in the islands of Brenneyar<sup>[5]</sup>, near Gottenborgh. The history of this last market has been handed down to us in the Icelandic language, from which I shall translate the following account, as it throws no inconsiderable light upon the state of those times with respect to commerce and manners. “Hoskold, of Hoskoldstad,” says the author, “went to the islands of Brenneyar, it being esteemed the highest pleasure to attend an assembly crowded with the chiefs of every nation of whom we have any knowledge: for here the kings of Gothic race were obliged, according to a standing law, to meet every third year, for the purpose of establishing mutual peace throughout their dominions. The market was exceedingly numerous, and at the same time as splendid and attractive, every pause of business being filled with banquetting, interludes, plays, and a variety of other entertainments equally enchanting. One day as Hoskold took a walk with some of his attendants, he chanced to see a neat tent at a distance from the rest; curiosity induced him to go that way. Having come up to it, he met with a man at the door, cloathed in purple, with a Russian hat on his head. On enquiry, he found that his name was Gilli, the Russian.—Hoskold said, he had often heard his name, and that his fortune was superior to that of any other merchant; in consequence of which he expected to find every thing in his possession which he might wish to buy.—Gilli enquired what he wanted:—one of Hoskold’s attendants answered that he wanted to purchase a maid-slave, if he had any. Gilli replied, No doubt you intend to rally me, for you probably guess that I have not what you ask for; but in that you are perhaps mistaken. Hoskold having cast his eyes round the tent, observed it to be divided with a curtain

suspended in the middle, which on being drawn up disclosed twelve women. Gilli on this invited Hoskold to approach, and take his choice. Hoskold accepted the invitation; and, after a close inspection, fixed on one, seated last of all next the tent, and of course less conspicuous,—notwithstanding the meanness of her dress, her beauty shone throughout so irresistibly, that Hoskold was immediately captivated with her charms, which convinced him of her illustrious descent. The price set on her amounted to the weight of three marks of silver. It seems to me, said Hoskold, that you place too high a value on her, in as much as this appears to be triple the price. Gilli acknowledged he was in the right, as he esteemed her beyond the rest; at the same time acquainting Hoskold, that if he gave her up, and chose any one of the rest, he should have one of them for one mark of silver. I will see, said Hoskold, the quantity of silver at present in my purse, which was *hung on his girdle*, then *he called for the scales*. Gilli seeing this, observed, that no imposition in this affair should be laid to his charge; on account of which he thought it but just to acquaint the intended purchaser, that the woman was subject to a remarkable defect. Hoskold was impatient to know what it might be. Gilli soon gratified him, in letting him know that she was dumb: and notwithstanding, continued the merchant, I have endeavoured by various means to induce her to speak, these have all proved ineffectual.—Hoskold again demanded the scales, and desired to see how much the purse contained. Gilli obeyed; and having weighed the silver, found it exactly to amount to three marks. Having closed the bargain, Hoskold took the female slave, and acknowledged, that Gilli throughout the whole had dealt with candour.”

In all the places aforesaid, human beings were however as often exchanged for horses, arms, and loaves of bread and meat, as sold for money. Thus Lullus, the archbishop of Mentz, asserts, that he saw a horse exchanged for a male slave<sup>[6]</sup>; and, according to Schannat, a female one was sold for a horse, a shield, and a spear<sup>[7]</sup>. But Saint Rembert, archbishop of Hambourgh, made a far better bargain, receiving from the heathen Danes a great number of their slaves for the horse he rode upon<sup>[8]</sup>. Nor were the slaves of higher value among the Goths; for Jornandes tells us, that they exchanged their slaves for a piece of bread and meat<sup>[9]</sup>. Among the Franks the price of a skilful slave was 10 skillings of gold, but in Denmark, Norway, and Sweden, the regular price never exceeded one mark silver, *i. e.*

one pound twelve shillings sterling<sup>[10]</sup>; and in Wales a slave was equal to a head of cattle<sup>[11]</sup>. As to the personal rights, a slave was every where sold with the same forms<sup>[12]</sup> and solemnities as a horse, or any other beast; except in Denmark, where a proclamation before a court of law was ordered to precede the sale<sup>[13]</sup>. According to such principles, the same custom was paid for an imported slave as for an ox, viz. a saiga, or a penny, if the slave was to be sold<sup>[14]</sup>. The slaves being chained together, were brought to market, and sold in lots, each lot containing a number of slaves, which number was very various and uncertain<sup>[15]</sup>. Thus Saint Elegius, bishop of Noyons, bought often twenty, thirty, fifty, nay whole ship loads in such lots, consisting of men, women, and children, from Germany, Britain, Italy, and the Levant<sup>[16]</sup>. Helmold beheld at once in the market at Micklinburgk no less than seven thousand Danes exposed to sale<sup>[17]</sup>. And at that time certain merchants embraced only this branch of trade, which to them proved highly beneficial. Yet of all nations, none was more savage than the inhabitants of Verdun, who having emasculated the boys, sold them at an immense price to the Arabs, who were then settled in Spain<sup>[18]</sup>. The Slave Trade was otherwise the business of the Jews, particularly in France, which gave Agobard, the archbishop of Lyon, occasion to reproach the Christians in several of his sermons<sup>[19]</sup> for permitting the Jews to traffick in slaves. On the other hand the Saracens raised an incredible number of slaves for the Venetians, who sold them publicly at Rome<sup>[20]</sup>. But this market being stopped, the Venetians bought Christian slaves on board the privateers infesting the Mediterranean, and brought them to their own market<sup>[21]</sup>. At length the Doge interfered, and at once put an end to this shameful traffic.

The Christian religion being at length received by the different nations of Europe, totally changed the ancient trade. On one side the precepts of Christianity were spread among barbarians, and the doctrine of equal rights, to which nature and a future life entitle all human beings, without the least exception, made the slave trade gradually to cease. On the other hand, the importation of slaves, and all traffic of this nature, was severely prohibited<sup>[22]</sup>; Besides, a doctrine was established by the clergy, that eternal salvation would be the surest reward for the emancipation of slaves<sup>[23]</sup>; nay, the Christian priests and confessors frequently obliged their penitents, who had no slaves in their own possession, to buy some and manumit them in

the presence of the people assembled in the church<sup>[24]</sup>. The priests themselves set good examples, they purchased slaves, particularly youths of a good and promising appearance, received them into orders, and thus made them entirely free<sup>[25]</sup>.

Before we proceed to the abolition of the slave trade by law, I shall beg leave to observe, that slaves were among those things which our heathen ancestors offered to their numerous gods, and stained their altars with human blood; if we can believe Ditmarus of Merseburg, who charges the Danes with having in their great sacrifices used no fewer than ninety-nine slaves<sup>[26]</sup>. St. Bonifacius tells us, that the newly converted Germans sold their slaves to their infidel neighbours for the above-mentioned purpose, which at length was stopped by Gregory the second, who made the offender guilty of a capital offence<sup>[27]</sup>. Charloman ordered in the synod of Leptin, in the year 743, that a man, who sold his slave to an infidel, should be infamous; and excommunicated in the same manner as a murderer, if the slave thus sold was intended to fall a victim to the gods. And in Norway it was absolutely forbid to sell a slave out of the kingdom, unless he had committed an enormous crime<sup>[28]</sup>. With a view to promote the abolition of this savage custom, which proved to be fatal to persons of the most exquisite beauty<sup>[29]</sup> and the most exalted character; it was wisely enacted, that the ceremonies of emancipation among the Christians should resemble the form of the heathen sacrifices, and engage in the same way the imagination both of the Christians and the heathens. Thus happily did the slaves obtain chance of liberty; thus were they often brought to the church, placed on the altar, and symbolically sacrificed to the true God<sup>[30]</sup>.

The national assemblies of the heathens commenced with the bloody worship; and the Christians passed a law, that on such occasions a slave should be made free, and the expence of the feast, at which he obtained his liberty, defrayed by the public<sup>[31]</sup>.

It had through ages been the custom of all the heathen nations, to exercise an arbitrary power over their new-born children, for it was left to their own pleasure, whether they chose to have the trouble of nursing these harmless beings, or destroy them<sup>[32]</sup>. The laws of nature, deeply engraved in the breasts of the human race could not always be suppressed, and an action abhorred even by the brutes, awaked feelings which at length brought

mankind back to the dictates of reason. Many nations found it more advantageous, instead of depriving the poor infants of their lives, to sell them into slavery: thus were many lives preserved, and the parents had the gratification of seeing their unhappy offspring have a chance of aspiring to a better fortune.

The liberty of a mans selling into slavery his own children, was of course restrained to certain rules. They begun by enacting that the child, which was sold for a slave, should recover its liberty, by paying the sixth part of the purchase money to the master. And it was further ordered, that no such slave should be exported out of his native country. At length the duration of this kind of slavery was reduced to the certain term of seven years<sup>[33]</sup>, or as the Icelandic law more equitably ordered it, till the purchase money, and expences made on the slave, were reimbursed<sup>[34]</sup>. The learned lawyer Eusebe de Lauriere, observing that the ancient Germans were accustomed to sell their children, has stated, that they exercised the Roman *Jus Vitæ et Necis*<sup>[35]</sup>; though I agree with him herein<sup>[36]</sup>, yet I cannot forbear observing, that a very extraordinary reason might sometimes give birth to a trade which makes every heart ache. The ancients, wherever they lived, were perpetually harrassed, as well with domestic as foreign wars, and consequently experienced all those evils which arise from neglected agriculture, dreadful scarcity and famine. Therefore, if the parents did not chuse to see the dear fruits of their mutual love pining and starving before their eyes, they were obliged to sell their children to a purchaser, who had it in his power to preserve the lives of these unhappy victims, though at the expence of their liberty<sup>[37]</sup>.

From the scarcity, so frequent in these times, originated a law, which was passed by the republic of Iceland<sup>[38]</sup>, which had not the least respect to *jus vitæ et necis*. The law was, “that the children being unable of themselves to support their poor parents, should be obliged, in order to maintain them, to sell themselves into slavery;” which slavery, however, was to last no longer than the urgent necessity continued.

It is difficult to fix the certain æra when the emancipation of slaves was universally introduced in Europe; for though Bodin points out the year 1250, in his *Book de Republica*, yet we know that slavery lasted much longer in some countries. The abolition of the slave trade was a very serious

object of the legislative power through more than four centuries, for we find no council of the middle age without one canon at least relative to this business. The civil government gave every support they could afford to so pious and so benevolent endeavours of the church; and both agreed, that the undertaking could only be accomplished by slow degrees. The steps adopted for this purpose were on one side, to forbid the exportation of slaves, to throw the slave trade into the hands of Christians, who ought to know their common duties, and to make some regulations concerning a humane treatment of the slaves. On the other hand, laws were passed, that opposed the home traffic, and rendered it as difficult as possible.

In the year 779, Charles the Great passed a law, that no slave should be exported out of his dominions<sup>[39]</sup>; and in the council at Reims, it was enacted, that the slave trade should only be carried on by Christians; and that a man who sold his slaves either to a Jew or a Heathen, should be excommunicated, and that the contract be void<sup>[40]</sup>. Kidnapping was however very frequent among the Christians, particularly in Nordalbingia (the present dukedoms of Schlesweg and Holstein) who used to force those Christians, who had fled to them from their Heathen neighbours, to re-enter the slavery, and suffer themselves to be resold to their former masters; till at length St. Anschar, archbishop of Hambourgh, prevailed<sup>[41]</sup> on them to abolish this disgraceful custom, and to issue a law, “that whoever should be accused of kidnapping in time to come, should clear himself by *the judgment of God* (so the ordeal was then called) and should be excluded from the rights of producing witnesses, or taking his oath prescribed by the common law: a law which bordered very near upon that of the Jews (Exod. chap. xxi.); and he that stealeth a man, and sell him, or if he be found in his hand, he shall surely be put to death.” What Charles the Great, and the synodes in different parts of Germany, France, and Italy, had enacted, with respect to the slave trade, was followed by other princes. For Canute the Great, king of England, passed a law, “that no Christian should be sold for exportation<sup>[42]</sup>,” by such means the foreign slave trade decreased, and could only be carried on by fraudulent means<sup>[43]</sup>, and by a description of persons, who were carefully watched by the bishops, whom a synode had authorized to enquire throughout their respective dioceses, “whether slaves were exported; whether a Christian were ever sold, either to a Jew or a Heathen; or, whether a Jew dealt in slaves who profess the Christian religion.” The

famous market at Bristol<sup>[44]</sup>, where the slaves were imported from all parts of England, and there sold to Irish merchants, was much depressed and diminished by St. Wulfstan, whose example was imitated by the second synode of London, which enacted, “Nequis illud nefarium negotium, quod hactenus in Anglia solebant homines sicut bruta animalia venundari deinceps ulla tenus facere præsumat.” I find, however, remains of this inhuman trade still disgrace much later ages; and how could it be abolished, as long as the kings themselves sold their prisoners for money?<sup>[45]</sup>

Thus the Irish continued to buy slaves from England during the reign of king John<sup>[46]</sup>.

In Norway, few steps were taken towards the abolition of the slave trade before the year 1270<sup>[47]</sup>. The law, which till that time guided all civil business, was passed by king Hacon, who began his reign in the year 1222, and died in the year 1263. In this law much is spoken of the slaves, who seem to have been happier in Norway than in any other part of Europe; for the slave could obtain his liberty by a prescription of twenty years<sup>[48]</sup>, and the law guarded his life against the master, who, for having killed his slave, was liable to be punished as a murderer<sup>[49]</sup>. The slave who destroyed his infant child, was considered as one of the greatest offenders, but as they had no capital punishments in Norway at that time, the punishment was being sold for exportation. The slave had some property accruing from his own industry<sup>[50]</sup>, when not employed in his master's service; a property which sometimes enabled a skilful slave to recover his liberty. The master of a slave could not refuse him his liberty, when offered the purchase money; nay, it was sufficient if half the sum was delivered<sup>[51]</sup>. The manumission prescribed in the said law is particularly curious: “If a slave takes land and settles, then shall he give an entertainment, called the *Feast of Liberty*, the expences of which shall be nine bushels of malt and a ram. A free-born man shall cut off the head of the ram, and the master shall unlock the collar<sup>[52]</sup> surrounding the slave's neck. If the master refuses to grant the slave leave of giving the feast of liberty, then shall the slave request it before two witnesses, and in their presence invite his master, with five friends of his. The slave then shall prepare the entertainment, and let the uppermost seat be ready to receive his master and mistress. Thus the slave shall recover his liberty, which recovery he shall prove by those who were present at the

feast, against all attempts, which his master may pursue for the future.” Such was the state of slavery in Norway, when it was totally abolished in the year 1270, by king Magnus, called the Reformer of the Law.

The Danish law of King Eric Menved, who died in the Year 1319, shews, that slavery then was very common, notwithstanding the kings themselves had joined their efforts with the clergy, and aimed constantly at the destruction of it. According to the Scanish law, servitude was the certain fate of a criminal offender<sup>[53]</sup>; of a captive<sup>[54]</sup>; of the offspring of a female slave. The captives belonged to the king, and offenders were slaves to the public<sup>[55]</sup>. With respect to birth, the rule well known by the Romans, *partus sequitur ventrem*, was so carefully observed, that if a slave happened to be father of a child, whose mother was born free, the child had the strongest claim to liberty<sup>[56]</sup>; nay, that a free-born man who had married a woman not knowing her to be a slave, had right to sue for divorce, and marry another as he pleased<sup>[57]</sup>. During the slavery in Denmark, it resembled much the Roman slavery; and it is uncertain how or when the Danish slaves were emancipated.

The state of Slavery in Sweden fell and rose in the same degree as it did among her neighbours. In Upland, the servitude was abrogated by King Byrger in the year 1295; and King Eric Magnuson spread the blessing of liberty over the rest of that kingdom in the year 1335, for the purpose, as he said, of *following God, who has rescued the whole mankind from Slavery*<sup>[58]</sup>.

It was but late that Slavery was abolished in Scandinavia, yet I am happy to say, that the consequences were entirely different from those in most other countries. Every where but in Norway, Iceland, and Sweden, a new class of human beings called *Glebæ adscripti* arose, who were nothing more than Slaves, except that they could not be exchanged and sold as brutes, or without the land, with respect to which, they were considered as cattle. This description of people were likewise stiled *Villani*. Therefore, when the ancient laws and historians of the middle age speak of the abolition of slave trade, it is not to be understood as if all servitude ceased at once; that supposition is directly contrary to the testimony of a multitude of authentic records, and other faithful accounts. The truth is, that an

absolute slavery was changed into a limited one, in which human beings were secured from the arbitrary disposal of a capricious master.

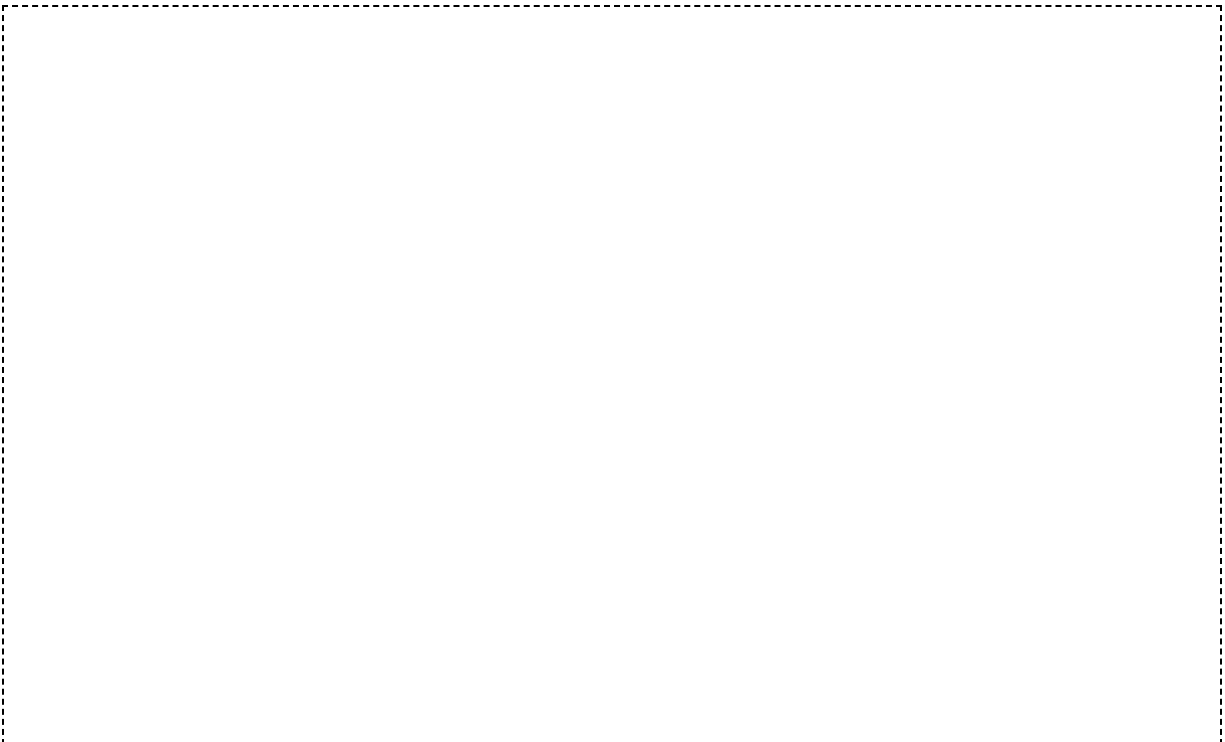
From the preceding extracts it appears, that Slavery is a necessary evil attending upon nations in a state of uncivilization and barbarism; and that very great efforts, for a continued length of time, are required to extirpate it. Europe would never have attempted, much less have effected, the happy alteration that has universally taken place within her own borders, unless she had first received the humane doctrines of Christianity. This however was the work of centuries, and of men who sacrificed their own ease to the good of mankind. And we may reasonably conclude, that without the knowledge of true morality, and of that philanthropy which is best taught by the Gospels, without a settled life employed in agriculture and arts, in science and manufactures, it is impossible for the inhabitants of the Gold Coast to live free from those evils which introduce Slavery, or what is worse, the horrid murders of their captives by the sword or the fire, to glut revenge, or appease superstition. It will not be an easy matter for all the states of Europe to agree in passing a general law for the abolition of the Slave Trade; but it will be still more difficult to prevent the African shores from reeking with the gore of young and old taken captive by an enemy, who, when the Slave Trade has ceased, will have no other effectual method of securing his dreaded foe<sup>[59]</sup>.

For these reasons it appears to me that the abolition of the Slave Trade is by no means adviseable, with a view to Christian duty and benevolence, as it also appears impracticable in the light of political interest. How can Europe, who divides her regards between philanthropy and commercial interest, see her plantations neglected and restored to their natural wildness for want of hands to cultivate them? can she give up with indifference those millions whom she might save from brutal tyrants, and place in a state of servitude comparatively happy?

I myself hate every branch of Slavery, yet I wish that of the Negroes to be still continued, under the eyes of government, whose duty it is to demand accounts of the treatment of the slaves during their voyage to the West Indies. Here let the purchasers be restrained in their bargains to a certain term of years, after which the slave to be free: in the mean time forbid the master to have power over the lives of his slaves, and give him not the smallest right to mutilate or torture them<sup>[60]</sup>. Let the master be obliged to

indulge his slaves in certain leisure hours to attend the teachers of the gospel, who shall instruct them in the established religion; for here, I believe the missionaries will do more good than in Africa, at least this is the first object. Let the slaves have what the Romans call Peculium, a small property, to be cultivated when they are not employed in their masters service. Let the propagation of the slaves be encouraged by premiums to be divided between the parents and the master. Let all children of slaves born in a Christian country be free, and let them be educated at the public expence, as in the Foundling Hospital and the Workhouses. But if this be too much to attempt, let such children serve only a certain number of years, to repay their master the expence their support has brought upon him. By humane treatment, and assiduous instruction in divine and moral truths, the Danish missionaries, and the Moravian brethren, have been of great comfort and utility to the Danish Negroes: these slaves become virtuous by the aid of such preachers, and the hope of certain liberty, appears to influence their minds with such principles as are an ample recompence to themselves, and a source of unstained riches to the public.

FINIS.



## FOOTNOTES

- [1] Vita Zachariæ Papæ Rom. in the year 747.
- [2] Wilhelm. Malmesbur. in the Life of St. Wulfstan. Wharton's Anglia Sacra, Vol. II. p. 258.
- [3] Helmoldi Chronic. Slavic., libr. i. p. 9. Adam of Bremen calls it Magnopolis, a great town at that time near Wismar.
- [4] Snorro Sturleson's History of Norway in many places; and Thorm. Torfæi, Hist. Rer. Norvegic, t. 2. p. 332.
- [5] Laxdæla Saga; or, the history of the county of Laxardal, in Iceland, during the 10th century, MS. confer. I. Reenhielm Observations on the Life of king Oluff Treggvason. Upsal, p. 127. This curious manuscript is now, among many other, in the possession of the British Museum, owing to the public spirit and unrivalled liberality of Sir Joseph Banks, baronet, president of the Royal Society, &c.
- [6] Epistola inter Bonifacianas, C.
- [7] Schannati Codex Traditionum Fuldensium Charta, ccxix. Lipsiæ, 1724.
- [8] Adami Bremensis, Hist. Eccles. lib. i. p. 35. Vita Sancti Remberti in Langebech's Script. Rer. Danic. t. ii. p. 140-41.
- [9] Jornandes de Rebus Geticis, cap. xxvi. p. 647. Edit. Grotii. Amstelod. 1655.
- [10] Laxdæla Saga, l. c.
- [11] Leges Wallicæ. Edit. Wotton. lib. iii. p. 206. Hero eadem est potestas in servum suum ac in jumentum, & libr. iv. p. 324. Compensatio pro cæde servi præfinitur nulla, excepto quod pretium ejus domino solvitur prout animalia occisa compensari debent. This is determined in the second chapter to be one mark (libra), if the deceased had been native, but one mark, one hundred and twenty pences if foreigner of birth. See p. 205.
- [12] The forms are preserved in Marculfi Formulæ, xxi. xii.
- [13] Leges Scanicæ, l. vi. c. 5.
- [14] H. Goldasti Constitutiones Imperiales, t. i. p. 210.
- [15] Will. Malmesbur. in vita St. Wulfstani.
- [16] Du Chesne Scriptor. Rer. Francicar, t. i. p. 628.
- [17] Helmoldi Chronic. Sclaver, libro ii. c. 12.
- [18] Carsamatium vocant Græci. Amputatis virilibus et virga eunuchum, quos Verdunenses ob immensum lucrum facere solent & in Hispanianas ducere. Vid. Du Chesne Glossar. ad Script. mediæ et infimæ. Lat. t. ii. p. 363. Paris, 1733.

[19] Baluzius, t. i. p. 62. where St. Agobard's Letters are complaining of the Jewish Insolence.

[20] Anastas. in vita St. Zachariæ, P. R. ad ann. 747. Contigit plures Venetorum, hanc Romanam advenisse in urbem negotiatores et mercimonii nundinas propagantes multitudinem *Christianorum* mancipiorum virilis scilicet et feminini sexus emere visi sunt, quos et in Africam ad paganam gentem nitebantur deducere.

[21] Dandul. in Chronic. year 878.

[22] There is no council held, says Hildebrand in his *Historia Conciliorum*, where the abolition of slave trade has not been a serious object.

[23] Otto bishop of Bamberg's legation into Denmark in the year 1228. In acta sanctor. Julii, t. i. p. 443.

[24] l. c. Confr. The Norwegian law called Gulethings Law, the chapt. on emancipation—"The slave shall be brought into the church, and the Holy Bible laid on his head, which being done, he shall be free."

[25] Vita Sancti Anscharii by Rembert, cap. vii. in Langebech's Script. Rer. Danicar, t. iv. p. "Cœperunt curiose pueros querere, quos emerent, ut ad Dei servitium educarent. Et. cap. xiv. Cœpit quoque ex gente Danorum et Slavorum nonnullos emere pueros, aliquos etiam ex captivitate redimere, quos ad servitium Dei educaret. capite xxxi. Multos redemit captivos, quos et libertate donavit, nonnullos tamen eorum, qui ad hoc apti esse poterunt, &c. conf. Jordani Origines Slavicae, Part iv. p. 298." "Sanctus Wenceslaus pueros gentilium in servitute genitos emens fide Christi præditos dabat libertati. De Pueris Anglis Romæ eandem ob causam publice emptis vid. St. Gregorii et St. Augustini Vitas in Mabillonii Acta Sanctorum, t. i. p. 391, 405, 426, 504."

[26] Ditmarus Merseburgensis in Leibnitii Scriptores Rer. Brunsvigicar, t. i. p. 327. Conf. Step. Joh. Stephani notas ad Saxon. Grammatici Histor. Danic, p. 92. Soræ 1644-45, fol. and J. Grupens Origines Livoniæ.

[27] Baronii Annal. Ecclesiastici, in the year 731.

[28] The Norwegian law, called Gulathing's Law of King Hacon Haconson, Part 13.

[29] Adam of Bremen. De Situ Daniae, Præterea relatum est nobis in eodem ponto esse Estland insulam ubi Dracones adorant cum volucris, quibus etiam vivos litant homines, quos a mercatoribus emunt diligenter omnino probatos, *ne maculam in corpore habeant*, pro qua refutari dicuntur, a Draconibus. In Sweden the same practice was not less common, where, on urgent occasion, kings and princes were sacrificed, particularly in the times of scarcity and famines. Nay the Swedes boasted once of having immolated five kings in one day.

[30] Acta Sanctorum Julii, tom i. pag. 439. Mezlaus Princeps gravi suspirio frendens in semet ipso, Deum ait, testem invoco—quod hunc pro honore Dei omnipotentis et amore Domini mei Episcopi absolvo. Statimque, missis satellitibus suis, ergastulo eum tenebroso produxit, et manibus suis altari superimponens, holocaustum eum in odorem suavitatis obtulit domino, et mox vincula ejus solvi mandavit. Conf. Sefridi Vitam Ottonis Episcopi Bambergensis Acta Sanct. Julii, t. i. p. 418. seq.

[31] The ancient Norwegian law before the year 1222. Part i. c. 3. “We shall manumit a slave in our annual assembly at Gula; each member shall emancipate his slave by turn; and the whole assembly shall pay six ounces of silver, in order to defray the expences of the Feast of Liberty. Whoever does neglect to procure a slave in his turn, shall be fined in xii ounces of silver to the Bishop, and the assembly shall be obliged to buy a slave at their own expence, for the above-mentioned purpose.”

[32] With respect to the Greeks, see Henr. Aug. Zeibickii Commentat. Academica ad Euripidis Jonem Witeb. 1732; and concerning the Romans, Gerh. Noodtii Julium Paullum & Cornelii Bynkershoekii Opuscula de jure occidendi, vendendi, et exponendi liberos; and with respect to the northern nations, see Johan. Eriici Dissertatio de Expositione Infantum Havniæ, 1756.

[33] Baluzii Capitularia Regum Francor. libr. vi. c. 4.

[34] The Icelandic Law, called *Gragas*, which prevailed from the year 928 till the year 1267.

[35] Glossaire du droit Francois, t. ii. p. 171. et t. i. p. 378, in the words “Mise hors de pain, & homme et femme mariez sont tenus pour emanciper.”

[36] In order to be convinced of the ancient Germans having exercised over their children that which is called “Jus Vitæ & Necis,” it is only necessary to have recourse to J. G. Heineccii Elementa Juris Germanici Antiqui, libr. ii. tit. 29. Halæ 1746. Corpus Juris Germanici Antiqui, cura J. G. Heineccii, et Petri Georgisch, Halæ 1738 in 4. p. 418.

[37] Vita Sancti Juniani apud Labbe in Bibliotheca Manuscr. t. ii. p. 573. Cumque puer velociter jussa patris explessit renuntiavit patri dicens. Mulier pauperula adest, cui et panis deficit, nec unde emat, habet quo audito jussit eam in conspectu suo adstare, hilari vultu et paterno affectu interrogans, cur tanto ejulatu fleret, et clamoribus eum inquietaret? At illa respondet: Veri dei famulæ et sacerdos, scias me fame periclitari, Panis deest, emptio nulla, fames quotidie invalescit, et ecce prægnans morior, quamobrem tuam ad vi clementiam, ut si me de periculo famis eripueris, sim tibi perpetuo ancilla, et filius, quem utero gesto servus sempiternus, quem cum enutrieris, tuis manibus, et jugiter servire instituam, tantum adjuva ne peream.

[38] The law of the Republic of Iceland, called *Gragas*, in the Book relative to the poor, c. i.

1st. “Be it enacted, That the son maintain his mother in preference to his other relations.

2d. “That he support his kindred, as long as he can afford it, in the following order; first his father, then his own children, and next after them his cousins.

“That the claims of his other kindred be relative to his right of coming to the inheritance of them. If the son has no fortune, then shall he sell himself into slavery for the support of his father; who, on the mother’s situation being more aggravated, shall give up his place to her, and he shall be supported by his nearest relations.

“The father has the alternative of selling himself and his children into slavery, on account of their education.

“If a person aforesaid be found to beg, then shall he, who ought and could support that person, pay a fine to the public.”

[39] Baluzii Capitularia, t. 1. p. 144.

[40] Synodus Aurelianensis, iv. c. 50.

[41] Rembertus in vita Sancti Anscharii, cap. xxxii. Insuper ne ulla fraus in futurum pro eadem re obtenderetur conventionem talem fecerunt, ut non juramento nec testibus se ullus eorum, qui in prædicta rapacitate mulctati fuerant defenderet, sed iudicio omnipotentis Dei, se committeret, aut ipse, qui pro tali scelere impetebatur, aut certe captivus, qui alium impetebat.

[42] “Præcipimus ne Christiani passim in exilium mittantur vel in gentilitatem, ne forte pereant animæ.” This same law had been enacted before, viz. in the Synode of Enham, in the year 1009, Ne Christiani et innocentes extra Patriam vendantur. Confer. Wilkins, Concilia. Magnæ Britann. t. 1. p. 235. 287. 293. 295 et Leges Anglo Sax. pag. 107. 120. 134.

[43] Regino de Disciplina Ecclesiastic. libr. ii. cap. 41.

[44] Wilhelm. Malmesbur. in Wharton’s Anglia Sacra, t. ii: p. 258. in the life of St. Wulfstan, libro ii. c. 20. “Vicus est maritimus Brichstow dictus, a quo recto cursu in Hiberniam transmittitur, ideoque illius barbariei accommodus. Hujus indigenæ cum cæteris ex Anglia causa mercimonii sæpe in Hiberniam navigant.—Videres et gemeres concatenatos funibus miserorum ordines et utriusque sexus adolescentes; qui liberali forma, ætate integra barbaris miseratione essent, cotidie prostitui, cotidie venundari, ancillasque prius ludibrio lecti habitas iamque prægnantes venundabant. Facinus execrandum, dedecus miserabile nec belluini affectus memores homines necessitudines suas, ipsum postremo sanguinem suum servituti addicere. Hunc tam inveteratum morem et a proavis ad nepotes transfusum Wulfstanus paulatim delevit, sciens pervicacitatem illorum, non facile flecti. Sæpe circa eos duobus mensibus, sæpe tribus mancibat omni dominica eo veniens et divinæ prædicationis semina spargens.”

Sancti Lupi Sermo ad Anglos, in Præfatione Epistolari ad G. Hichesii thesaur. linguar. Septemional. p. 99. 106. “Pauperes autem et egeni gravissime quidem seducuntur, et circumventi sunt crudeliter per insidias et e terra venales missi sunt longe in exilium, et infantes e cunabulis minimo furti pretio plerumque per hanc gentem ac sævissime contra leges sunt mancipati, et jus libertatis est abreptum, & jus mancipii coangustatum—et permulti ex hac regione venundantur Christiani.”

[45] Chronicon Saxonicum in the Cottonian Library, Tiber. B. v. In the year 1036, Harold, King of England, having imprisoned the attendants of Prince Alfred, sold them as slaves in a public market. Conf. Encomiastes Emmæ Reginae in J. Langebeck’s Scriptor. Rer. Danicar. t. ii. p. 498.

[46] Chronicon. Hiberiæ, or the Annals of Phil. Flatesburg, in the Cottonian Library. Domitian. A. xviii. Super his Hiberniæ miseriis et ab Anglis periculis convenit apud Ardmachum (Anno 1172) plurima hominum multitudo præcipue clericorum, qui concluderunt, eo hæc mala inflictæ esse Hiberniæ, quod olim Anglorum pueros a Mercatoribus ad se advectos in servitutem emerant contra jui Christianæ libertatis. Angli enim olim pauperes ut necessitatem supplerent vel

proprius filios vendere soliti sunt. Unde cum omnium consensu per totam Hiberniam servi Angli libere abire permissi sunt.

[47] The ancient law of Norway, called Gulething's Law, commonly attributed to King Hacon Haraldson. The book on liberty, chap. v.

[48] Frostathing's Law of King Hacon Haconson, part iv. chap. xv.

[49] Gulething's Law, l. c.

[50] Snorro Sturleson's *Historia Rer. Norvegicar.* Havn. 1777. vol. ii. in the Life of King Oluf. The king dissatisfied with some great men in the county of Thrundhem, which then laboured under scarcity, forbid the inhabitants of the southern parts of Norway to give even the least relief to their brethren in the north. A near relation of the famous Einar Thambeskielfer came to him, and asked for corn; Einar having fully explained the impropriety of complying with desires contrary to the proclamation of their royal master, said, "My slaves, for whose actions I am by no means legally bound, possess corn in plenty; it is their property, and they can dispose of it according to their own pleasure." It seems as if the slaves in Denmark have enjoyed the same privilege, for Elnoth, in the life of Saint Canute the king, says, "*Servos manumissos et proprii sudoris labore pretio acquisito redemptos libertati publicæ adjudicavit.*" See J. Langebeck's *Script. Rer. Danicar.* t. iii. p. 352.

[51] Frostathing's Law of Hacon Haconson, part i.

[52] On this occasion the author remembers to have seen in the Museum of the Antiquarian Society at Edinburgh a metal collar, constructed with a ring for receiving a padlock, with the following inscription:—

"Alexander Stewart found guilty of death, for theft at Perth, the 5th of December 1701, and gifted by the Justiciary as a perpetual servant to Sir John Erskine of Alva." This collar was lately found in the grave of the deceased, in the burial ground at Alva.

[53] The Scanish Law, libro vi. c. 9. libr. vii. c. 15.

[54] L. c.

[55] L. c.

[56] L. c. This was reverse according to the English law. See Bracton. libr. vi. tract. i. c. 21-22.

[57] The laws of Sæland passed by King Eric Menved, book v. ch. 3.

[58] The West Gothic Law.

[59] The cruelty with which Roger Hoveden and the author of the life of St. Elphege charge the Danes, is owing to the above-mentioned reason. The Danes had no market for slaves in England; and they could neither give a share of their provisions to their captives, nor detach a body of men from the army, to keep in order such an immense number of slaves, whom they knew would undertake any thing which might restore them to liberty, and enable them to harrass their enemy. Under such circumstances, the Barbarians had no other alternative than to put their captives to death;—death was perhaps far preferable to a diseased life consumed in a horrid dungeon, which often has been the case. *Vita Sancti Elphegi in Whartoni Anglia Sacra.* Igitur ex omni numero, qui ad octo millia

hominum prætendebatur, quatuor solummodo monasticæ professionis octingentos autem inferioris ordinis viros remansisse accepimus, quos primum beneficii gratia computatos, deinde verberibus acriter exaratos, aut pecuniaria redemptione dignos judicaverunt, aut servilibus mancipandos operibus secum abduxerunt. Roger Hoveden, fol. 247. b. Grex monachalis et turba virilis, sed et muliebris necnon infantilis decimatur, *novem trucidantur decimus vitæ reservatur* quatuor monachis et octingentis decimatorum summa perficitur.

[60] Capitulare. Libr. vi. c. 14. Si percusserit quispiam oculum servi sui aut ancillæ, et luscus eos fecerit, dimittat eos liberos pro oculo quem eruit. Dentem vero si excusserit servo vel ancillæ simili sententia subjacebit.

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